

Legislation & frameworks

It's tempting to think of legislation as a handbrake on creativity. The opposite is closer to the truth: rules are what let a clever prototype become something people will actually trust with their data, their health and their kids.

What this key knowledge covers

This summary distils everything you need for **KK11 — Legislation & frameworks** in Innovative Solutions. Work through the explanations, then use the worked good-vs-weak answers to see exactly how marks are won and lost. Tick off the revision checklist at the end before a SAC or exam.

Study summary

Rules don't kill innovation — they make it trustable

It's tempting to think of legislation as a handbrake on creativity. The opposite is closer to the truth: rules are what let a clever prototype become something people will actually trust with their data, their health and their kids.

Speed limits, lane markings and traffic lights don't exist to stop you driving — they're the reason you're willing to drive at all. Without them, nobody would share the road. Tech legislation is the same: it's the shared "road rules" that make it safe for strangers to use FloatMate. Break them and you don't just get a fine — people stop trusting the whole product.

For VCAA, KK11 sits in the **Analysis** and **Evaluation** stages of the problem-solving methodology. When you analyse a problem you must identify which laws constrain the solution; when you evaluate, you judge whether the solution actually meets its legal obligations. So legislation is both a constraint on your design and a criterion you're judged against.

The **Copyright Act 1968** and the privacy Acts create legal *obligations*. Break them and there are real consequences.

The **AI Ethics Principles** are *voluntary* — guidance, not law. They shape good practice and are becoming the blueprint for future regulation.

Some Acts are **federal** (all of Australia); others are **Victorian** (this state only). Knowing which is which earns marks.

The five instruments, stacked

FloatMate's data has to pass through five checkpoints before it can flow safely from a swimmer's wrist to a guardian's phone. Think of them as a **compliance stack** — a packet of data dropping through five layers, each asking a different question. Drag the slider to send a



packet through, and click any layer to see what it checks.

The Compliance Stack

A FloatMate data packet (heart-rate + distress alert) falls through all five instruments. Each layer guards a different concern.

Eight voluntary principles for designing, building and using AI responsibly. Not enforceable, but the moral baseline for FloatMate's distress-detection model.

Protects original creative works — the safety video, posters, music and icons FloatMate wants to include. You can't just take other people's work.

13 Australian Privacy Principles (APPs) governing how personal information is collected, used, stored and disclosed across Australia.

10 Information Privacy Principles (IPPs) for the **Victorian public sector** — which the council pool is. Plus rules for protective data security.

11 Health Privacy Principles (HPPs) covering **health information** in Victoria — exactly what heart-rate and distress data is.

Voluntary vs legal and **federal vs Victorian**. The AI Ethics Principles are the only voluntary one — calling them "a law" loses marks. Copyright and Privacy Acts are *federal*; the PDP Act and Health Records Act are *Victorian*. Get the jurisdiction right and you've already banked a mark.

Australia's AI Ethics Principles

Eight voluntary principles released by the Australian Government in 2019 to guide the responsible design, development and use of AI. They're a **compass**, not a cage — but they're rapidly becoming the template for future AI law.

FloatMate's distress detector *is* AI — a model trained to classify "in trouble" vs "fine." That makes these principles directly relevant. Click any node on the wheel to see how it applies to FloatMate.

The Principle Wheel

Eight principles orbiting FloatMate's AI core. Click a node — or use the buttons — to see the principle and a FloatMate example.

Three principles trip students up most. **Transparency & explainability** = people should know AI is involved and roughly how it decides. **Contestability** = if AI's decision affects you, you can *challenge* it. **Accountability** = a real human is responsible for the outcome. If FloatMate falsely flags a child as drowning and clears the pool, the family deserves to know why (transparency), to dispute it (contestability), and someone at FloatMate must own it (accountability).

Copyright Act 1968 (Cwlth)

Protects the rights of people who create original works — text, images, music, video, and software code — by giving the creator control over how their work is copied, shared and adapted. Protection is **automatic** the moment a work is created; there's no need to register it.

FloatMate's team wants the app to feel polished: a water-safety **video**, some **poster graphics**, calming **background music**, and a set of **icons**. Every one of those is somebody's copyright. You can't just download and embed them.

Original literary, artistic, musical and dramatic works, plus film, sound recordings and computer programs. FloatMate's own code and logo are protected too.

Limited free uses — including **research or study**, criticism/review, and news reporting. A school assignment may qualify; a commercial pilot at a public pool generally does *not*.

Creators can pre-license work under CC. But restrictions still apply — e.g. **attribution** required, or **NonCommercial** (NC) which blocks the paid pilot.

Generating content from copyrighted material, or training on it without permission, raises live copyright questions. Citing AI use (APA) is now expected in student work.

Putting a chart song under FloatMate's promo clip feels harmless — but it's exactly what the Act exists to stop. The artist owns that recording. FloatMate's safe options: license it, commission original music, or use a clearly-licensed Creative Commons track *that allows commercial use* and credit the creator.

Privacy Act 1988 (Cwlth)

The national law governing how **personal information** is handled. It contains the **13 Australian Privacy Principles (APPs)** covering the whole life-cycle of data: collection, use, storage, accuracy, access and disclosure.

Personal information is anything that identifies a person or could reasonably identify them — names, emergency contacts, swim logs tied to an account, even a device ID. FloatMate collects loads of it.

The APPs that matter most for FloatMate

Where practical, individuals must be able to deal with you anonymously or with a pseudonym. Could a casual swimmer use FloatMate without an account?

Only collect personal information you actually *need* for your function. FloatMate doesn't need a swimmer's home address to detect distress.

Tell people what you're collecting and why, at the time you collect it — a clear privacy notice, not buried fine print.

Only use information for the **primary purpose** it was collected for. Distress data collected for safety can't be quietly sold to an insurer.

Take reasonable steps to protect information from misuse, loss and unauthorised access — encryption, access controls, secure servers.

Give individuals access to the personal information you hold about them when they ask.

Bolted onto the Privacy Act, the **NDB scheme** means that if FloatMate suffers a serious data breach likely to cause harm, it must notify both the **affected individuals** and the **Office of the Australian Information Commissioner (OAIC)**. The notice must describe the breach, the kinds of information involved, and the steps people should take to protect themselves. "Hope nobody notices" is not a strategy — it's a second offence.

Privacy and Data Protection Act 2014 (Vic)

Victoria's own privacy law for the **Victorian public sector** — state government departments, agencies, local councils and the organisations that work for them. It contains the **10 Information Privacy Principles (IPPs)**, which closely mirror the federal APPs, plus a

protective data security framework.

As a school project, FloatMate was only really touched by the federal Privacy Act. But the moment the **council** runs the pilot at its public pool, the council is a Victorian public-sector body — so the **PDP Act** and its IPPs now govern how that swimmer data is handled. Same data, extra rulebook, because of *who* is operating it.

Ten IPPs covering collection, use, disclosure, data quality, security, access and identifiers — Victoria's version of the APPs for public-sector data.

The Act sets a security framework (the VPDSF) requiring public bodies to manage information-security risk to the data they hold.

Privacy Act 1988 is **federal** → **APPs** → applies to Commonwealth agencies and most businesses. PDP Act 2014 is **Victorian** → **IPPs** → applies to the Victorian public sector. They rhyme on purpose, but mixing up "APP" and "IPP", or "federal" and "Victorian", is a classic mark-loser.

Health Records Act 2001 (Vic)

Victoria's law specifically for **health information** — held by anyone in Victoria, public or private. It contains the **11 Health Privacy Principles (HPPs)**. Health data gets its own Act because it's some of the most sensitive information about a person.

FloatMate's bread and butter — **heart rate**, movement patterns, and logged **distress events** — is health information. That pulls the Health Records Act squarely into play, on top of the general privacy laws.

Collect health information only for the stated purpose, and don't use it for anything else unless the person separately consents. Safety monitoring ≠ marketing.

Keep health information secure, accurate and only as long as needed. Heart-rate logs shouldn't live on a server forever.

Individuals can access and seek correction of their own health records — a swimmer can ask to see their distress log.

Strict limits on sharing health information with third parties. Sending a distress alert to a *nominated guardian* is fine; selling patterns to an insurer is not.

If the data is **health information** in Victoria → **Health Records Act 2001**. If it's general **personal information** held by a business or federal agency → **Privacy Act 1988**. If a **Victorian public-sector body** holds general personal information → **PDP Act 2014**. FloatMate at the council pool can trigger *all three at once* — and saying so is exactly the kind of detail that scores top marks.

Three sets of principles, one shared spine

The APPs (federal), IPPs (Victorian public sector) and HPPs (Victorian health) deliberately echo each other. Once you see the shared concerns — collect fairly, use for the right purpose, keep it secure, allow access — you don't have to memorise three lists. You memorise **one spine** and three jurisdictions.

Principle numbers are indicative groupings to show the parallel structure — the exam rewards you for naming the right *Act* and the right *concern*, not for reciting clause numbers.

Privacy Act 1988: federal · applies across Australia · agencies & businesses. **PDP Act 2014:** Victorian · applies to the Victorian public sector. **Health Records Act 2001:** Victorian · applies to anyone handling *health information* in Victoria. Same idea of "protect the individual," three different reaches.

Which instrument applies?

Each card below is a FloatMate situation. Click a card, then drop it into the instrument you think governs it. Some situations trigger more than one — pick the **most specific** one. You'll get instant feedback and a one-line reason.

Command words for legislation questions

Legislation questions live and die on the command word. **"Identify"** wants a name; **"explain"** wants the *why* and the *so-what*. Matching your depth to the verb (and the marks) is half the battle.

State the relevant Act or principle. No explanation needed. "The Health Records Act 2001."

Name it *and* say what it does or requires, in context. Two ideas.

Name, describe, and link to the scenario — *why* it applies and the consequence if breached.

Make a judgement and defend it with legislation as evidence. Weigh the obligation against the design choice.

A 1-mark "identify" answered with a paragraph wastes time; a 4-mark "explain" answered with three words throws away marks. Read the number in the margin before you write.

Six exam traps that cost real marks

These are the slips examiners report year after year. Click each to see the fix.

The principles are **voluntary guidance**, not legislation. Writing "FloatMate broke the AI Ethics law" is wrong and loses the mark.

Say FloatMate "should follow" or "is guided by" the AI Ethics Principles. Contrast with the Acts, which create binding obligations.

Saying the Health Records Act is federal, or the Privacy Act is Victorian, signals you don't know the jurisdictions.

Federal: Copyright Act 1968, Privacy Act 1988. **Victorian:** PDP Act 2014, Health Records Act 2001. Tag each Act with (Cwlth) or (Vic).

Heart-rate and distress logs are **health information**; an email address is general **personal information**. They invoke different Acts.

Classify the data first. Health → Health Records Act. General personal info → Privacy Act (or PDP Act if a public body holds it).

"The Privacy Act applies" with no connection to FloatMate is a generic answer. Examiner reports flag a lack of *specific* detail every year.

P·E·L writing trainer

Top legislation answers follow a simple shape: **Point** (name the Act/principle) → **Evidence** (what it requires, tied to the scenario) → **Link** (the consequence or judgement). Write a

response below and watch the three bars respond to your keywords in real time.

FloatMate is failing to meet its data-security obligation under **APP 11 of the Privacy Act 1988** — and, because heart-rate and distress data is health information, under **HPP 4 of the Health Records Act 2001 (Vic)** (*Point*). Both require an organisation to take reasonable steps to protect personal and health information from misuse and unauthorised access; storing identifiable distress logs on a cloud server with no encryption is not reasonable protection (*Evidence*). As a result, FloatMate is exposed to a data breach that would trigger the Notifiable Data Breaches scheme, forcing it to notify affected swimmers and the OAIC, and risking penalties and loss of user trust (*Link*).

VCE-style practice questions

Five questions, **20 marks** total, in rising difficulty. Try each one cold, then reveal a weak answer, a strong answer, and the marking guide. Mark yourself honestly — the dial bottom-right tracks your total.

Five instruments at a glance

- **Voluntary** · national
- 8 principles (wellbeing, human-centred, fairness, privacy & security, reliability & safety, transparency, contestability, accountability)
- Guidance for responsible AI
- **Federal** · hard law
- Protects original works automatically
- Fair dealing & Creative Commons exceptions
- **Federal** · 13 APPs
- Personal information life-cycle
- Notifiable Data Breaches scheme
- **Victorian** · 10 IPPs
- Victorian public sector
- Protective data security
- **Victorian** · 11 HPPs
- Health information in Victoria
- Purpose limit + access rights
- Health data in Vic → **Health Records Act**
- Vic public body → **PDP Act**
- Business / federal → **Privacy Act**
- Someone's creative work → **Copyright**
- AI behaviour → **AI Principles**

How to answer exam questions

Read the **command word** first — it sets how much to write. *State/Identify* wants a word or phrase; *Describe* wants features; *Explain* wants reasons and links; *Justify/Evaluate* wants a judgement backed by evidence. Always pull in the **scenario detail** rather than answering in the abstract. The examples below contrast a weak response with a strong one for the same question.

Q1. Identify · 2 marks

FloatMate collects swimmers' heart-rate and distress data. Identify two pieces of legislation that govern how this data must be handled, and state the jurisdiction (federal or Victorian) of each.

✗ A weak answer

"The Privacy Act and the AI law. They protect people's data." Why it's weak: "AI law" isn't legislation (the AI Ethics Principles are voluntary), no jurisdictions given, and one of two required items is wrong.

✓ A strong answer

◆ Strong response "1. **Privacy Act 1988 (Cwlth)** — federal. 2. **Health Records Act 2001 (Vic)** — Victorian, because heart-rate and distress data is health information." Why it works: two correct Acts, correct jurisdictions, and a reason the health Act applies.

How the marks are awarded

- 1 mark — each correctly named Act relevant to the data (max 2).
- Jurisdiction must be correct for full credit; AI Ethics Principles alone earns 0 (not legislation).

Q2. Describe · 3 marks

FloatMate wants to add a popular chart song to its promotional video. Describe how the Copyright Act 1968 applies, and outline one lawful way the team could include music.

✗ A weak answer

"They can't copy the song because of copyright. They should just make their own." Why it's weak: correct instinct but thin — doesn't say *why* the Act protects the song or who holds the right, and "make their own" is stated without explanation.

✓ A strong answer

◆ Strong response "The Copyright Act 1968 automatically protects the artist's original sound recording, giving them exclusive control over copying and public use. Using the song without permission would infringe that right. One lawful option: license a Creative Commons track that permits commercial use, and credit the creator as the licence requires." Why it works: names the right, the rights-holder, the infringement, and a specific compliant alternative.

How the marks are awarded

- 1 mark — the Act protects the creator's original work / exclusive rights.
- 1 mark — using it without permission is infringement.
- 1 mark — one valid lawful method (licence the track, commission original music, or use suitably-licensed Creative Commons with attribution).

Q3. Explain - 4 marks

When the local council runs the FloatMate pilot at its public pool, an extra piece of legislation applies that did not apply to the school prototype. Explain which Act this is, why it now applies, and one obligation it places on the council.

✗ A weak answer

"The PDP Act applies now. It's about privacy in Victoria so they have to keep the data private."
Why it's weak: names the Act but the "why" is vague (doesn't say the council is a public-sector body) and the obligation is generic.

✓ A strong answer

◆ Strong response "The **Privacy and Data Protection Act 2014 (Vic)** now applies because the council is a **Victorian public-sector organisation**, and the PDP Act and its Information Privacy Principles govern how that sector handles personal information. One obligation: under the IPPs, the council must only collect swimmers' personal information that is necessary for the pilot and must take reasonable security steps to protect it. This wasn't triggered for the school prototype because a school project run by students isn't operating as a Victorian public-sector data handler in the same way." Why it works: correct Act + jurisdiction, the precise reason it now applies (public-sector operator), and a concrete IPP-based obligation.

How the marks are awarded

- 1 mark — identifies the PDP Act 2014 (Vic).
- 1 mark — explains it applies because the council is a Victorian public-sector body.
- 1 mark — references the Information Privacy Principles.
- 1 mark — states one specific, correct obligation (e.g. minimal collection or data security).

Q4. Explain · 5 marks

FloatMate's AI sometimes falsely flags a swimmer as "in distress," clearing the pool and embarrassing them. Using two of Australia's AI Ethics Principles, explain how FloatMate should respond to this problem.

✗ A weak answer

"FloatMate should follow the AI ethics rules and make the AI more accurate so it doesn't make mistakes." Why it's weak: treats the principles as "rules," names none of the eight, and gives only a generic "be more accurate" with no principle-based reasoning.

✓ A strong answer

◆ Strong response "FloatMate should apply **reliability and safety** — the AI should operate dependably for its intended purpose, so the team must test and retrain the model to cut false positives. It should also apply **contestability**: a swimmer who is wrongly flagged needs a clear, timely way to challenge the decision and have it reviewed. Backing both is **accountability** — a named person at FloatMate owns the outcome and the fix. Because these principles are voluntary guidance rather than law, following them is about earning trust, not avoiding prosecution — but ignoring them would undermine the very safety case FloatMate is built on." Why it works: names specific principles, applies each to the false-positive problem, and correctly frames them as voluntary.

How the marks are awarded

- 1 mark each — two AI Ethics Principles correctly named (max 2).
- 1 mark each — each principle applied meaningfully to the false-positive scenario (max 2).
- 1 mark — recognises the principles are voluntary / about trust, not law.